

Law & Motion

3. 9:00 AM CASE NUMBER: C24-00425
CASE NAME: M. L. S. BUILDER INC. VS. SEANDAN NG
***MOTION/PETITION TO COMPEL ARBITRATION AND STAY PROCEEDING NOTICE**
FILED BY: M. L. S. BUILDER INC.
TENTATIVE RULING:

Matter continued to June 22, 2026 pursuant to stipulation of the parties to continue hearing and Order entered April 21, 2026.

4. 9:00 AM CASE NUMBER: C24-02592
CASE NAME: ROWENA DAVIS VS. THE STONEBROOK CONVALESCENT CENTER, INC
***HEARING ON MOTION IN RE: AN ORDER GRANTING HER AUTHORITY TO MAINTAIN THE**
SURVIVAL CAUSES OF ACTION ON BEHALF OF ROWENA DAVIS, AS INTERESTED PERSON
FILED BY: DAVIS, ROWENA
TENTATIVE RULING:

Plaintiff Namonda West ("Ms. West") filed a motion "for an order granting her authority to maintain the survival causes of action on behalf of Rowena Davis, deceased..." (the "Motion"). The Motion was set for hearing on May 4, 2026. The motion is unopposed.

Analysis

After the filing of the Motion, an ex parte application was brought seeking the same relief. That relief was granted by the Court and an Order entered December 29, 2025. For some reason, this Motion was not withdrawn.

Disposition

The Court finds and rules as follows:

1. The Motion is DENIED as MOOT.
2. The Court shall enter the order after hearing.

5. 9:00 AM CASE NUMBER: C25-00012
CASE NAME: SURGRIFF PROPERTIES LLC VS. CLARITA GRIFFIN
***HEARING ON MOTION IN RE: COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES,**
REQUESTS FOR PRODUCTION, AND REQUESTS FOR ADMISSION, SET ONE
FILED BY:
TENTATIVE RULING:

On July 21, 2025, plaintiff Surgriff Properties LLC ("Plaintiff") filed a motion to compel further responses to certain discovery requests propounded by Plaintiff to defendant Clarita Griffin ("Defendant") (collectively, the "Motion to Compel Further Responses"). The Motion to Compel

Further Responses was set for hearing on November 3, 2025.

Background

The Motion to Compel Further Responses relates to four separate discovery requests. Plaintiff served Defendant with (1) a Form Interrogatories, Set One, (2) Special Interrogatories, Set One, (3) Requests for Production, Set One, and (4) Requests for Admission, Set One. See Declaration of Jason Horst filed July 21, 2025 (“Horst Decl.”), ¶13 and **Exhibits 1-4** thereto. Collectively, these requests are referred to herein as the “Discovery Requests.”

No responses were received before the deadline. Horst Decl., ¶15. Despite meet and confer efforts, no responses were received before Plaintiff filed an earlier motion to compel on May 15, 2025.

Responses were finally served on June 3, 2025. Horst Decl., ¶15.

The earlier motion to compel was denied as moot given that responses had been served in the interim. See Order entered September 2, 2025.

However, this motion remained pending based on the contention that Defendant’s responses were inadequate.

At the hearing on the Motion to Compel Further Responses on November 4, 2025,* the Court ordered the parties to meet and confer and file a Joint Statement no longer than 10 pages by December 1, 2025 (the “Joint Statement”) and continued the hearing to December 15, 2026.

At the Case Management Conference (CMC) on November 19, 2025, the Motion to Compel Further Responses was continued from December 15, 2025 to March 9, 2026. The Court was informed that the parties had made progress towards settlement and the parties agreed to continue the discovery motion. See Minute Order dated November 19, 2026.

A Reply was filed on March 2, 2026. Among other things, plaintiff observes that no settlement has yet been reached.

*This date was specially set by the Court’s published tentative ruling.

On March 10, 2026, the Court issued a further order following the March 9, 2026 hearing. See Order entered March 10, 2026 (the “March 10, 2026 Order”). The March 10, 2026 Order made certain findings, including regarding the waiver of objections. However, the parties were ordered to comply with the prior order to prepare and submit the Joint Statement as ordered on November 4, 2025.

A Joint Statement was filed on April 20, 2026 (the “Joint Statement”).

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

On the other hand, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information

sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). Moreover, the moving party and proponent of the discovery on a motion to compel further responses to a request for production of documents must set forth specific facts showing good cause justifying the discovery sought by the demand. Code Civ. Proc. § 2031.310(b)(1).

Notwithstanding further meet and confer discussion, the parties' Joint Statement does not reflect any agreements for supplemental discovery responses. The Court has considered Defendant's statements and arguments in the Joint Statement. None of those assertions adequately addresses the defects in the responses at issue or justifies the non-compliance.

Form Interrogatories, Set One, Nos. 2.1, 2.2, 2.7, 2.11, 4.0, 12.1, 12.2, 12.3, 12.4 and 17.1. The Court finds the responses to these requests are inadequate in that the responses are evasive or incomplete, and/or improperly interpose objections despite the waiver of objections.

Special Interrogatories, Set One, Nos. 3, 5, 6, 8, 9, 11, 12, 14, 15, 17, 18, 20, 21 and 22. The Court finds the responses to these requests are inadequate in that the responses are evasive or incomplete, and/or improperly interpose objections despite the waiver of objections.

Requests for Production, Set One, Nos. 1, 2, 3, 4, 5, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, 24, 25, 26, 27 and 28. The Court finds the responses to these requests are inadequate in that the statements of compliance are incomplete, not code compliant as written, and/or improperly interpose objections despite the waiver of objections. Defendant has not supplemented any responses despite the Court's admonition in its March 10, 2026 order to review the provisions of Code of Civil Procedure governing written responses to document inspection demands.

Requests for Production, Set One, Nos. 6, 7, 8, 9 and 10. The Court does not find good cause to compel further responses to these requests and declines to order further responses to these requests.

Requests for Admission, Set One, No. 11, 12, 13, 14, 15 and 17. The Court finds the responses to these requests are inadequate in that the responses interpose objections despite the waiver of objections.

The responding party is ordered to make further responses to the subject discovery requests, as set forth above. The further responses shall be as complete and straightforward as the information reasonably available to the responding party permits and shall not contain waived objections.

Sanctions

In its prior March 10, 2026 Order, the Court made the following findings:

- 1. Initial Failure to Timely Respond.** Defendant's failure to respond to the Discovery Requests even after the deadline to do so had passed and demands for responses were made constituted failing to respond to an authorized method of discovery, pursuant to Code of Civil Procedure section 2023.010(d). See Horst Decl., ¶¶6 *et seq.*
- 2. Failure to Meet and Confer in Good Faith.** Defendant's failure to respond to meet and confer efforts regarding the Discovery Requests after the late responses were finally served constitutes failing to confer with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery, pursuant to Code of Civil Procedure section 2023.010(i). See Horst Decl., ¶¶10-13.

In addition, the Court finds Defendant's failure to make full and complete code compliant responses constitutes failing to respond to an authorized method of discovery, pursuant to Code of Civil

Procedure section 2023.010(d).

The Court finds that all of the foregoing conduct by Defendant constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions.

In failing to make full and complete code compliant responses and in unsuccessfully opposing this motion, the Court finds that Defendant did not act with substantial justification. Nor does the Court find any other circumstances make the imposition of the sanction unjust.

Defendant shall pay monetary sanctions to Plaintiff in the amount of **\$3,960.00** (the “Monetary Sanctions”). The Court finds that the Monetary Sanctions are reasonable expenses, including attorneys’ fees, incurred by Plaintiff as a result of the foregoing conduct by Defendant. In fixing said amount, the Court has considered all evidence in the record before the Court, including the supporting declarations of the moving party. The Court also mitigated the award in the exercise of its discretion and in light of the totality of the circumstances bearing on this discovery dispute.

Disposition

The Court further finds and orders as follows:

1. The Motion to Compel Further Responses is GRANTED.
2. Defendant shall serve verified further amended responses to the Discovery Requests within **thirty (30) calendar days** of notice of entry of this order, in accordance with the further orders and directives set forth above.
3. The Monetary Sanctions shall be paid by Defendant to Plaintiff within **thirty (30) calendar days** of notice of entry of this order.
4. The Court shall issue the order after hearing.

6. 9:00 AM CASE NUMBER: C25-00973
CASE NAME: JOHN HURTADO VS. WOODBURY LAFAYETTE COMMUNITY ASSOCIATION,
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: WOODBURY LAFAYETTE COMMUNITY ASSOCIATION,
TENTATIVE RULING:

Defendants Woodbury Lafayette Community Association and Sharon Collins, Inc. (“Defendants”) filed a Demurrer on December 15, 2025 to the Second Amended Complaint filed by plaintiffs November 12, 2025 (the “Demurrer”). The Demurrer was set for hearing on May 4, 2026.

Background

Defendants’ Demurrer contends that the third, fourth, fifth, sixth, seventh, eighth and ninth causes of action fail to state facts sufficient to constitute causes of action. Defendants also demur to the first, second and ninth causes of action on the grounds that Plaintiffs lack standing. Defendants also demur to various of the causes of action on other grounds, including being barred by the statute of limitations and being duplicative.